

#	Case Name	
1	American Lending Center Holdings Inc. vs. Zhou 2025-01507222	Motion to Compel Production Continued to 10/14/2026 in Dept. CM02
2	Henggeler vs. The Pegasus School 2024-01438973	Demurrer to Amended Complaint Defendant The Pegasus School's demurrer to plaintiff Jerilynn Henggeler's second amended complaint ("SAC") is sustained without leave to amend. [ROA ## 98 Defendant's unopposed request for judicial notice is granted. Legal Standard for Demurrer A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994. Limited to the "four corners" as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413. On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. <i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967. Discussion <i>First Cause of Action for Intentional Misrepresentation</i> The statute of limitations is three years. Code Civ. Proc. §338(d).